

Calendar Line 2

Case Name: In the Matter of THE HENRY BUFFALOW FAMILY TRUST

Case No.: 26PR201903

INTRODUCTION

On February 5, 2026, petitioners Jason Buffalow, Julie Appler, Michael John Ahern, and Gary Ahern (collectively, “Petitioners”), remainder beneficiaries of the Henry Buffalow Family Trust, initiated this action by filing a petition for breach of trust, breach of fiduciary duty, an accounting, surcharge of the trustee, removal of the trustee, imposition of constructive trust on real property, declaratory relief, and recovery of trust property (“Petition”). In their Petition, Petitioners contend that venue is proper in Santa Clara County pursuant to Probate Code section 17005 because the principal place of administration of the trust is in Santa Clara County.

On March 23, 2026, the trustee, Suzanne J. Gabbard (“Respondent”), filed a response and objection to the Petition. In that pleading, she argued, inter alia, that the principal place of administration of the trust was actually in Marysville, Washington.

On May 26, 2026, Petitioners filed a memorandum of points and authorities regarding the venue issue. On June 4, 2026, Respondent filed an opposition. On June 9, 2026, Petitioners filed a reply.

On July 31, 2026, the Court set the matter on the law and motion calendar for determination of the venue issue. On August 6, 2026, Respondent filed the declaration of her counsel regarding the venue issue.

DISCUSSION

I. LEGAL BACKGROUND

Probate Code section 17005 establishes that, in general, the proper venue for commencement of a proceeding regarding a living trust is “the county where the principal place of administration of the trust is located.” (Prob. Code, § 17005, subd. (a).) Probate Code section 17002, subdivision (a) defines a trust’s principal place of administration as the “usual place where the day-to-day activity of the trust is carried on by the trustee or its representative who is primarily responsible for the administration of the trust.” “If the principal place of administration of the trust cannot be determined under subdivision (a), it shall be determined as follows: . . . [i]f the trust has a single trustee, the principal place of administration of the trust is the trustee’s residence or usual place of business.” (Prob. Code, § 17002, subd. (a)(1).)

“[T]he county where the complaint was filed is presumptively the proper county for a trial of the action, and the burden of proving otherwise rests with the party moving to change venue[.]” (*Black Diamond Asphalt, Inc. v. Superior Court* (2003) 109 Cal.App.4th 166, 170.)

II. ANALYSIS

Petitioners contend that the principal place of administration of the trust is in Santa Clara County because the trust was executed in Mountain View, California, it was previously administered in this county prior to Respondent's succession to the role of trustee, and because the trust used to hold real property in Santa Clara County. They assert that the trustee cannot unilaterally change the place for proper venue by moving or residing out of state.

Respondent, on the other hand, argues that she has completed the day-to-day tasks of trust administration from her residence in Washington state since she was appointed and, therefore, the principal place of administration is in Washington.

At the outset, the Court concludes that the determination of the principal place of administration occurs at the time a motion for change of venue is filed. “ ‘Venue is determined based on the complaint on file at the time the motion to change venue is made.’ [Citations.]” (*Malloy v. Superior Court* (2022) 83 Cal.App.5th 543, 553.) Thus, the fact that the trust may have been historically administered in Santa Clara County is not dispositive. Additionally, the Court agrees with Respondent that Probate Code section 17002 uses the present tense when it states, “The principal place of administration of the trust *is* the usual place where the day-to-day activity of the trust *is* carried on by the trustee or its representative who *is* primarily responsible for the administration of the trust.” (Prob. Code, § 17002, subd. (a).) This suggests that where the principal place of administration is located may change over time and the Court, in determining proper venue, is concerned with the current principal place of administration.

Petitioners rely on *Estate of Ivey* (1994) 22 Cal.App.4th 873 (*Ivey*), in which the Court of Appeal explained, “The proper venue is where the principal place of administration of the trust is located. (Prob. Code, § 17005, subd. (a)(2).) This means the usual place where the day-to-day activity of the trust is carried on by the trustee or its representative who is primarily responsible for administration of the trust. (Prob. Code, § 17002, subd. (a).) This was Los Angeles. The fact that appellant resided in Sonoma County did not give her the right to change venue under the general rule of Code of Civil Procedure section 395, subdivision (a). That section begins, ‘Except as otherwise provided by law . . .’ Here, Probate Code section 17005 defined the proper venue.” (*Id.* at p. 880.) While *Ivey* does establish that Probate Code section 17005 governs venue in trust cases under Probate Code section 17200, it is of limited value to Petitioners’ position because, in that case, the person who attempted to change venue was not the trustee but a one-sixth beneficiary. (*Id.* at p. 877.)

Moreover, Respondent does not appear to dispute that Probate Code section 17005 governs, she merely argues that the principal place of administration of the trust occurs in Washington and not in Santa Clara County. Petitioners argue that Respondent conflates the location of her residence with the location of administration of the trust. But, at least one court has suggested that those two locations may be one and the same. (See *David v. Hermann* (2005) 129 Cal.App.4th 672, 680 [“Probate Code section 17005, subdivision (a)(1), which authorizes the filing of proceedings affecting a living trust to be filed in ‘the county where the principal place of administration of the trust is located.’ It is undisputed that Wendy lives in Marin County and is the trustee of the Jane Alter Living Trust.”].) Moreover, when the principal place of administration cannot be determined under Probate Code section 17002, subdivision (a), it is residence or usual place of business that governs the principal place of

administration. (Prob. Code, § 17002, subd. (b)(1) [“If the trust has a single trustee, the principal place of administration of the trust is the trustee’s residence or usual place of business.”].)

The Court also notes that Respondent has provided evidence of two trustee’s notices that indicate the principal place of administration. The first notice, dated June 28, 2018, states:

The address of the principal place of management and the administration of The Henry Buffalow Family Trust pursuant to Probate Code § 17002 is set forth below:

280 Second Street, Suite 100

Los Altos, California 94022

(Respondent’s Opposition, Ex. B.) The second notice, dated September 2, 2025, states:

The address of the physical location where the principal place of the Trust administration is located is as follows:

7009 60TH PLACE NE

MARYVILLE, WA 98270

(Respondent’s Opposition, Ex. C.) Thus, it appears that Respondent changed the locus of administration of the trust to Washington state prior to the filing of the Petition because the second notice is dated prior to the filing of the Petition on February 5, 2026.

In support of their contention that Respondent cannot unilaterally move the locus of trust administration, Petitioners rely on *Van Buskirk v. Van Buskirk* (2020) 53 Cal.App.5th 523 (*Van Buskirk*), in which the Court of Appeal held that the defendants had sufficient minimum contacts with the state of California for the Court to find case-linked personal jurisdiction. The Court noted that “[t]he Trust originated and was administered in California. It is governed by California law. It holds interests in California real estate. The [defendants] claim the [trustee] has moved the Trust to Idaho and has cut all ties to California, but the propriety and effectiveness of that effort is the focus of this California lawsuit.” (*Id.* at pp. 531-532.) Petitioners claim that *Van Buskirk* supports the conclusion that the trustee cannot unilaterally move the locus of trust administration to another state when the trust was previously administered in California. But, the *Van Buskirk* court expressly did not consider venue and therefore, it did not consider whether the principal place of administration had moved along with the trustee. (*Id.* at p. 530.) Moreover, the Court of Appeal expressly found Probate Code sections 17002 and 17005 inapplicable to the issue of personal jurisdiction. (*Id.* at p. 538.)¹

¹ “Jurisdiction and venue can become intertwined, but in most actions, venue rules are not jurisdictional. If an action is filed in a court that has fundamental jurisdiction to try the matter but is not the proper venue, and the defendant does not object, that court can render an enforceable judgment that is not subject to collateral attack. [Citation.]” (*Capra v. Capra* (2020) 58 Cal.App.5th 1072, 1083 (*Capra*).) Here, no one appears to be arguing that the Court lacks fundamental jurisdiction over the case.

Assuming subdivision (a) of Probate Code section 17005 governs, Respondent has established that the current principal place of administration is in Washington state as that is where she resides. There is no evidence that any administration is being conducted by any other person nor is there evidence that Respondent travels to California to conduct her administration or employs agents in this county.

When subdivision (a) of Probate Code section 17005 does not apply, “the proper county for commencement of a proceeding pursuant to this division is determined by the rules applicable to civil actions generally.” (Prob. Code, § 17005, subd. (c).) The Law Revision Commission Comments to Probate Code section 17005 from 1990 state, “Subdivision (c) provides venue rules applicable in cases not covered by subdivisions (a) and (b), such as where jurisdiction over a trust, trust property, or parties to a trust is based on a factor other than the presence of the principal place of administration in this state. See Section 17004 (general basis of jurisdiction). *Thus, for example, when the principal place of administration of a trust is in another state, but jurisdiction is proper in California, the general rules governing venue apply.* See, e.g., Code Civ. Proc. §§ 392 (real property), 395 (county of defendant’s residence).” (Italics added.) Thus, it may be that the general civil venue rules apply.

Petitioners also assert that this court is the proper venue because the trust previously held real property in California. As explained in *Capra, supra*, 58 Cal.App.5th at p. 1085, on which Petitioners rely, different venue statutes may apply depending on whether real property is still held in the trust: “Different venue statutes apply depending on whether the cabin and the permit are still held in trust and this is an action concerning the trust’s internal affairs, or whether the assets are no longer held in trust and this is an action over land. The proper venue for a proceeding regarding the internal affairs of a trust is the county of the trust’s principal place of administration. (Prob. Code, § 17005, subd. (a)(1).) In contrast, venue for an action over land that does not concern the internal affairs of a trust is generally proper in the county where the land is located. (Code Civ. Proc., § 392, subd. (a).)”

Here, the trust initially held real property in Santa Clara County. At the time the Petition was filed, the Petition pled that “[t]he real property that is the subject of this Petition, located at 3411 Shady Spring Lane, Mountain View, California (Shady Spring Property), is also situated within Santa Clara County.” (Petition, ¶ 2.) The parties agree that said real property has since been sold. While Petitioners also mention a second trust real property, located at 1245 Space Park Way, Mountain View, California, that property had already been sold at the time Petitioners filed the Petition. (Petition, ¶ 31.) “ ‘Venue is determined based on the complaint on file at the time the motion to change venue is made.’ [Citations.]” (*Malloy v. Superior Court* (2022) 83 Cal.App.5th 543, 553.) Accordingly, real property that is no longer in the trust provides no basis for venue in this county. As to the Shady Spring Property, the Petition contains no allegations that the day-to-day business of the trust occurs there. Thus, the Shady Spring Property provides no basis for venue in this county unless the Petition can be considered to be an action over land. (See *Capra, supra*, 58 Cal.App.5th at p. 1086.)

When determining whether an action can be considered local (one involving land) or transitory or personal, the Court may take one of two approaches. (*Foundation Engineers, Inc. v. Superior Court* (1993) 19 Cal.App.4th 104, 108 [“Actions involving realty and fitting under [Code of Civil Procedure] section 392 are termed ‘local,’ as contrasted with ‘personal’ or ‘transitory.’ [Citation.]”].) One “approach ascertains the essential character of the action to establish venue.” (*Id.* at p. 109.) The other “approach to fixing venue is to disregard local

causes of action when joined to personal or transitory causes of action.” (*Ibid.*) Under either approach, venue is more properly in the venue of Respondent’s domicile.

Considering the “essential character” of the action, it is a personal action. The Petition seeks to remove and surcharge Respondent and it alleges that Respondent breached her fiduciary duties in her administration of the trust. It seeks declaratory relief that the trust became irrevocable upon Henry Buffalow’s death. While it also seeks a constructive trust over the Shady Spring Property and a declaration regarding the ownership of same, it is undisputed that the Shady Spring Property itself has sold and all that remains is the proceeds. The fact that the proceeds are contained in a bank account located in California does not convince the court that this is a land-based action.

Under the second approach, the local causes of action are disregarded, resulting in the conclusion that this is a personal action. (See *Foundation Engineers, Inc. v. Superior Court*, *supra*, 19 Cal.App.4th at p. 109 [“When a plaintiff joins local and transitory causes of action, venue follows the transitory cause of action. [Citation.]”].) Accordingly, to the extent this case is not governed by Probate Code section 17005, subdivision (a), it is controlled by Code of Civil Procedure section 395, which provides that the defendant’s domicile is the proper venue.

The burden of showing facts to justify a change of venue is on the moving defendant [citation] inasmuch as “[the] plaintiff’s choice of venue is presumptively correct.” [Citation.] But once the defendant has shown, in support of his motion, that he lives in another county, “[the] policy of the law favors the right of trial at the defendant’s residence.” (*Massae v. Superior Court* (1981) 118 Cal.App.3d 527, 530.)

Finally, Petitioners argue that Respondent’s request for dismissal or a stay of the action under Code of Civil Procedure section 410.30 is procedurally improper because Respondent has not made a motion relying on that statute nor has she established that Washington is a suitable forum, as required by case law. Code of Civil Procedure section 410.30 provides, “When a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just.” As early as March 27, 2026, the parties and the Court agreed to have this issue briefed and decided upon that briefing, the petition, and the response. (Minutes, 3/26/2026; Minutes 6/12/2026.) Thus, the parties have consented to the Court determining the issue of venue regardless of the fact that no motion has been filed. This is also tantamount to the Court making a venue ruling on its own motion.

Having concluded that venue is proper in the county where Respondent resides, the Court will stay the matter on its own motion pending the filing of any appropriate pleading Snohomish County, Washington. The parties are ordered to update the Court when such a pleading has been filed.

CONCLUSION

The Court hereby stays the matter on its own motion pending the filing of any appropriate pleading Snohomish County, Washington. The parties are ordered to update the Court when such a pleading has been filed.

The matter shall be set for a further status conference on January 15, 2027 at 10:00 a.m. in Department 13.

The Court will prepare the final order.

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